Zimbabwe

Advertisements Regulation Act

Chapter 14:01

Legislation as at 31 December 2016

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Advertisements Regulation Act (Chapter 14:01)
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Zimbabwe

Advertisements Regulation Act
Chapter 14:01

Commenced on 31 May 1929

[This is the version of this document at 31 December 2016 and includes any amendments published up to 31 December 2017.]

[Note: This version of the Act was revised and consolidated by the Law Development Commission of Zimbabwe. This version is up-to-date as at 31st December 2016.]

AN ACT to regulate the exhibition of advertisements on roads, railways and public places.

1. Short title

This Act may be cited as the Advertisements Regulation Act *[Chapter 14:01]*.

2. Interpretation

In this Act—

"**advertisement**" includes any structure or apparatus erected or intended only for the display of advertisements;

"**Minister**" means the Minister of Home Affairs or any other Minister to whom the President may, from time to time, assign the administration of this Act;

"**Railways**" means—

(a) the Rhodesia Railways referred to in the Federation of Rhodesia and Nyasaland (Dissolution) Order in Council, 1963, of the United Kingdom; or

(b) the National Railways of Zimbabwe referred to in section 3 of the Railways Act *[Chapter 13:09]*;

"**road**" means any road lawfully declared to be a main, district or branch road.

3. Erection or display of advertisements prohibited within certain areas

(1) No advertisement shall be erected or displayed—

(a) on any railway or within one hundred metres of any railway; or

(b) within the limits of any area which the Minister may, by statutory instrument, define as a prohibited area for the purposes of this Act:

Provided that any advertisement which was lawfully erected or displayed on any private land within any area which may be defined in terms of paragraph (b) may continue to be so erected and displayed for a period not exceeding two years from the date of publication in the *Gazette* of the statutory instrument defining such area.

(2) Any person who erects or displays an advertisement in contravention of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection as inserted by section 4 of Act No. 22 of 2001]

4. Saving as to exhibition of advertisements upon railway property, on certain land and premises or at agricultural shows

(1) This Act shall not apply to the exhibition of—

(a) advertisements within any area under the jurisdiction of a local authority or within a town ward of a rural district council or an area that has been declared in terms of the Rural District Councils Act *[Chapter 29:13]* to be a specified area, or on or upon any railway station, yard, platform or station approach belonging to the Railways;

(b) any advertisement displayed on any land or premises which relates to the sale or lease of such land or premises or the sale or hire of livestock or implements or produce of such land or premises, or any sign or notice displayed upon any road to indicate the situation of such land or premises;

(c) any advertisement displayed on or within one hundred metres of any licensed hotel or store premises in respect of which the occupier holds a general dealer's licence, or any sign or notice displayed upon any road to indicate the situation of such licensed hotel or store premises;

(d) any advertisement displayed at an agricultural show or similar exhibition where such show is held in an area not under the jurisdiction of a local authority;

(e) any sign, notice or advertisement which—

(i) is of a type approved by the Minister; and

(ii) is displayed by any automobile, publicity or other association or club approved by the Minister:

Provided that nothing contained in this paragraph shall be deemed to exempt any such association or club from compliance with any of the requirements of section 39 of the Road Traffic Act *[Chapter 13:11]* relating to traffic signs.

(2) Any sign or notice which contains any representation, words, letters or numbers other than those required to indicate the situation of land, premises, a licensed hotel or store premises, as the case may be, shall not be a sign or notice within the meaning of paragraph (b) or (c) of subsection (1).

5. ***

[section repealed by Act No. 22 of 2001]